MISHNEH TORAH — TISHREI

Live in It, Don't Just Eat in It: The Rambam on the Misvah of Sukkah

Hilchot Sukkah Perek 6

Sefer: Mishneh Torah (Rambam), **Sefer Zemanim — Hilchot Shofar, Sukkah V'Lulav** (Sefaria text)

Perek: 6 — who is obligated in sukkah, and how the mitzvah is performed

Topic: Women, children and the age of chinuch; Rashi vs Tosafot on *who* carries the obligation of chinuch; the ill and the *mitzta'er*; the mourner and the chatan; *shluchei mitzvah* and travellers (including Chol HaMoed outings); **תשבו כעין תדורו**: living in the sukkah, not just eating in it; *achilat arai* and what counts as a meal; the first-night kezayit; learning, davening and rain

Schedule note: Erev Sukkot 5787, shortened shiur (**7:15–8:00pm**). The third in this year's series on the chagim **from the Rambam** (previous years were from the Shulchan Aruch): Hilchot Shofar Perek 2, then Hilchot Shevitat Asor Perek 1, and now Sukkah. The shiur ended early because the Zoom account's 40-minute limit cut in. **All shiurim resume after Sukkot.**

The Structure of the Section

The Rambam's **Hilchot Shofar, Sukkah V'Lulav** has **eight chapters**:

Perakim	Subject
1–3	**Shofar** / Rosh Hashanah (we learned **Perek 2** before Rosh Hashanah)
4	**Building the sukkah**
5	**Sechach**
6	**Who is obligated, and how to dwell in the sukkah** (tonight)
7–8	**The arba'ah minim**
End of 8 (~Halachah 12 onward)	**Simchah**, the mitzvah of rejoicing on Sukkot

Perek 6 is long; we got through as much as possible.

Halachah 1: Who Is Obligated

נשים ועבדים וקטנים פטורין מן הסוכה.

Women, servants and children are exempt. For women the reason is simple: it is a **מצות עשה שהזמן גרמא**, a time-bound positive mitzvah (seven days a year).

טומטום ואנדרוגינוס חייבין מספק.

Anyone whose sex is in doubt, either because the genitalia are covered (*tumtum*) or because both are present (*androginos*), is obligated **out of doubt**, since he may be male.

וכן מי שחציו עבד וחציו בן חורין — חייב.

The half of him that is free is obligated.

The age of chinuch

קטן שאינו צריך לאמו, שהוא כבן חמש כבן שש, חייב בסוכה מדברי סופרים, כדי לחנכו במצות.

A child who no longer needs his mother, around five or six, is obligated **rabbinically**, to train him in mitzvot.

Where does "five or six" come from? The Mishnah/Gemara does not give an age. It says **קטן שאינו צריך לאמו**, and the Gemara defines that in two ways: he can **go to the toilet by himself**, or he **does not wake at night calling "Imma, Imma, Imma!"** endlessly. A three- or four-year-old still asks a parent to come and help. The Rambam presumably reckoned that the Gemara's two examples come out at around **five or six** (a Gemara in Eruvin also mentions ages of this kind).

So there is no fixed age of chinuch. It depends on the child: how mature, how needy. A very bright, mature child might be ready at four; another at seven or eight.

Who carries the obligation of chinuch?

View	The rabbinic obligation falls on…
Rashi (the standard explanation)	**The father.** The child is a child and is exempt; the father has a rabbinic obligation to educate him.
Tosafot	**The child himself.** The Chachamim placed a rabbinic obligation on the child from about five or six. The parents should encourage, but it is incumbent on him.

Tosafot's proof: the Gemara in Berachot. A child who ate a **kebeitzah** of bread (the biblical measure) can say **birkat hamazon on behalf of an adult who ate only a kezayit**. According to Rashi the child has no obligation at all, so how can he discharge an adult? According to Tosafot it works: an adult who ate only a kezayit is obligated in birkat hamazon **only rabbinically**, and the child also has a **rabbinic** obligation, so **a derabbanan discharges a derabbanan**. Rashi needs to explain that Gemara.

What does the Rambam hold? The Rabbi is not sure; it can be read both ways. He writes **חייב בסוכה**, "*he* is obligated", about the child himself, not the father, which is a small proof for Tosafot. But he opened the halachah with **קטנים פטורין**; perhaps that meant *biblically* exempt. There is room to discuss it. **Tosafot's view is the greater chiddush of the two.**

Why this matters: it is a **fundamental question running through all of hilchot chinuch.** Whenever we speak of a father's obligation of chinuch (and, a separate question, a

mother's), is the *peshat* that the parent has a rabbinic obligation to educate, or that the Chachamim placed a rabbinic obligation on the child so he gets used to the mitzvah? The two readings have **numerous ramifications**. Either way, young children should be encouraged to sit in the sukkah.

Halachah 2: The Ill and the Mitzta'er

חולים ומשמשיהן פטורין מן הסוכה. ולא חולה שיש בו סכנה, אלא אפילו חש בראשו, אפילו חש בעיניו.

The ill **and those looking after them** are exempt, and not only someone dangerously ill: **even a headache, even if his eyes are bothering him.**

The underlying principle: תשבו כעין תדורו

The Gemara says it clearly. The pasuk says **בסוכות תשבו שבעת ימים**, and **תשבו כעין תדורו**: *dwell as you live*. When you feel slightly unwell at home, you make yourself as comfortable as possible: you lie down, take an extra cushion, take some tablets. Sitting in the sukkah is fine for a healthy person, but when you are unwell your own bed is far more comfortable. So a **choleh** is exempt, because staying in the sukkah would not be *dwelling as you live*.

This is the most fundamental principle in the whole mitzvah of sitting in the sukkah, and it keeps coming back.

The Rabbi's own example: he could feel a small cold coming on, his throat tickling. He would not rely on that for the **first night**, but for the rest of Sukkot a genuine cold is enough to exempt a person from **sleeping, or even eating**, in the sukkah.

The helpers: obviously (the Rambam doesn't say it, the poskim do) they are exempt **only while they are helping**. While someone is bringing the ill person food he may eat where he needs to; as soon as he finishes, he goes back to the sukkah.

The mitzta'er

מצטער פטור מן הסוכה — הוא ולא משמשיו.

ואיזהו מצטער? זה שאינו יכול לישון בסוכה מפני הרוח, או מפני הזבובים והפרעושים וכיוצא בהם, או מפני הריח.

One who is **distressed** by sitting in the sukkah is exempt: **he, but not those serving him.** What is a *mitzta'er*? Someone who cannot sleep in the sukkah because of the **wind**, **flies, fleas** and the like, or a **bad smell**.

Point 1: same principle. תשבו כעין תדורו. If one room at home had a draught you couldn't fix, you'd move to another room. So too here: if it is very windy or very cold, if there are lots of flies, if there's a bad smell, you may leave. *(Rain is a separate matter with its own rule; see the last halachah.)*

Point 2: note the examples. They are all about *sleeping*. "He cannot **sleep** in the sukkah because of the wind..." The Rambam gives no example of *eating*. From this **the poskim deduce that a greater degree of distress is needed to leave the sukkah for eating than for sleeping.** How much greater is a matter of common sense. It makes sense: sleep is delicate and lasts a long time, so a lower level of discomfort is enough. For eating, put your coat on; you're sitting up, not lying down.

Point 3: the distress must be *external* and not of your own making. Wind is not in your control; flies, largely not; a smell, not. But **if you put up your sukkah in a place with a *perpetual* external problem, you cannot claim mitzta'er**. Some say such a sukkah is **pasul altogether**.

The Rabbi's case: a sukkah in an infested garden. He once had a situation with **mice and rats** in the garden. You might say: I can't sleep there at night, but I can eat there, because while people are walking around and eating they don't come in. **There is a strong צד to say that you do not even fulfil the mitzvah of *eating* there**, because the sukkah stands somewhere intrinsically unfit to *live in* for seven days (you would never sleep there). So it lacks the name of a sukkah, even for eating.

So the distinction is: a smell that *arrives*, for example someone spills something foul next to your sukkah on the second day, makes you a *mitzta'er* and you may go in. But if from the outset there is a perpetual factor stopping you living there, even if it only affects sleeping, you may not fulfil the mitzvah even when you eat there. **Build your sukkah somewhere it is actually possible to live.** Some things are beyond our control (Hashem sends a strong wind, someone starts building next door), and those are exactly what *mitzta'er* is for.

Halachah 3: The Mourner and the Chatan

האבל חייב בסוכה.

A **mourner** is obligated. This is an *avel*, after the burial of a father, mother, son, daughter, brother, sister or spouse, as opposed to an **onen** (before burial), who like all mitzvot is exempt.

Why state it? The Gemara asks: isn't an avel in pain? Why is he not a *mitzta'er*? The answer carries a psychological insight: **mitzta'er is defined by *external* causes**: cold, smell, infestation, the rats that suddenly started coming on the third night. **Distress that is internal, within the person, is not mitzta'er.** So the avel is obligated.

חתן וכל השושבינין וכל בני החופה פטורין מן הסוכה כל שבעת ימי המשתה.

The **chatan**, all his **shoshvinin** and all the **bnei hachuppah** are exempt **all seven days of the celebration**. The chatan is engaged in a mitzvah, rejoicing with his new wife, and cannot spend quality time with her in a cramped, uncomfortable sukkah.

The case: someone who married **between Yom Kippur and Sukkot**, so the sheva brachot run into Sukkot. It would be permitted **מעיקר הדין** to hold a **sheva brachot lunch on the first day of Sukkot outside the sukkah**, since the chatan and those rejoicing with him are exempt. (The Rabbi was unsure about the first and second *nights*, and thought probably not.) His friends may join, **but only while they are making him happy**; after that they are obligated again, while the chatan remains exempt. (The Rabbi doesn't know anyone who married in that window; getting guests there between Yom Kippur and Sukkot would be hard work. But in principle.)

A digression: the Rambam's view of the chuppah

This fits the Rambam's position in **Hilchot Ishut/Kiddushin**: **one is fully married only on bringing the wife into one's home.** Why then does the chuppah make the marriage? Because **in those days the chuppah *was* the quasi-home**. They would build a canopy, and

the couple would spend the next seven days there, with the party there too. It was like bringing her home for the week, and it usually wasn't big enough to hold everyone. **That is why the chatan and his company are exempt**: sheva brachot could not be held in a sukkah, there wasn't room. So there is strong room to say that if you couldn't fit into a sukkah, you could hold the first-day sheva brachot lunch in a regular room or hall.

Halachah 4: Shluchei Mitzvah, Travellers and Guards

שלוחי מצוה פטורין מן הסוכה, בין ביום ובין בלילה.

Someone on his way to perform a mitzvah (taking money to redeem a captive, delivering tzedakah, visiting his rav, travelling far to learn Torah) is exempt **by day and by night**.

Now compare everyone else. They are exempt **only for their specific period**:

Person	Exempt	Obligated
הולכי דרכים ביום: travelling by day (e.g. to inspect one's property elsewhere)	By day	By night: find a sukkah and sleep in it
הולכי דרכים בלילה: travelling by night	By night	By day
שומרי העיר ביום: city guard on a day shift	By day	By night
שומרי העיר בלילה: city guard on a night shift	By night	By day
שומרי גנות ופרדסים: guards of gardens and orchards	**Day and night**	—

Why are orchard guards exempt entirely? The Gemara: **שמא יעשה השומר סוכה, ידע גנב שיש שומר במקום קבוע, ויבוא ויגנוב ממקום אחר.** If the guard builds a sukkah, the thief will know where he is stationed and come round the other side. Don't give away your position.

Why is the shaliach mitzvah exempt even at night?

The Gemara tells of Amoraim who, on their way to a mitzvah, did not bother to sleep in a sukkah.

- **Tosafot:** the exemption at night applies **only where finding a sukkah would detract from the mitzvah**: it would take longer, you wouldn't rest properly, you'd arrive tired. **But if you reach a city with public sukkot available, why should you be exempt?**
- **The Rambam** (and Rashi seems to lean this way): **simply exempt.** If you are on your way to a mitzvah, **the entire journey, even while resting, is עוסק במצוה.** Though you're asleep now, the whole journey is one great mitzvah. So even if there is a sukkah nearby, you need not trouble yourself to find it.

The ordinary traveller is exempt only *while travelling*.

Chol HaMoed outings

A common question: you leave at 9:00am on a Chol HaMoed outing and come back at 8:00pm. Can you have lunch out? Are you a *holech derachim* by day?

Rav Ovadia Yosef and Rav Moshe Feinstein both held **no**: *holchei derachim* means travelling **towards a purpose**, not **leisure**.

By contrast: if you take a train from London to Manchester because you need to, for example a property has just been vacated and you must go and inspect it, you are a *holech derachim* during that time and **may eat on the train**, sandwiches or even a full meal.

Halachah 5: How the Mitzvah Is Performed

כיצד היא מצות ישיבת סוכה? שיאכל וישתה וידור בסוכה כל שבעת הימים, בין ביום ובין בלילה, כדרך שהוא דר בביתו בשאר ימות השנה.

Eat, drink and *dwell*, all seven days, day and night, **the way he lives in his house the rest of the year.**

What does *dar* mean? To live. And living means *everything*: your phone calls, your emails, relaxing, reading, playing games.

The forecast for London: 25° tomorrow, 23° on Shabbat. **There is absolutely no excuse to be at home reading the newspaper. Read it in the sukkah.** At night it may be cold, maybe. But during the day, if you're home, be in the sukkah. **This is your home**, not just the place you have your meals.

How the sukkah became a dining room

The Rabbi has given a whole shiur on this elsewhere. The idea that the sukkah is chiefly **a place to eat and drink** comes from **Tosafot**, from **Ashkenaz**: they lived in **northern Europe, where it was too cold**. So the mitzvah was in effect **reframed**: the *primary* dwelling became eating and drinking. The shitah has many ramifications, and one of them is a minhag the Rabbi calls a shame: **we say the berachah of leisheiv basukkah only when we eat.**

The Rambam would throw this out completely, in the Rabbi's reading. Why not make a berachah **every time you enter the sukkah to dwell**? You've come home from Shacharit, you don't want to eat, you want to sit and read, study, bring the laptop in and work. **You are doing a mitzvah.** Tosafot said no berachah because the main mitzvah is eating and drinking, and they said that **because of the climate**. And it has affected us **psychologically**: we think of the sukkah as where we eat. **That is wrong.**

Anyone who has had **Sukkot in Israel** knows proper Sukkot: seven days in the sukkah, sleeping, eating, drinking, doing everything there. Here it is harder, but when the weather is good, **try to do everything in the sukkah.**

The source: the seven days of the miluim

The Gemara derives **day and night** from a **gezeirah shavah, שבעת ימים / שבעת ימים**, from the **seven days of inauguration**, when the kohanim had to remain at the Ohel Moed **day and night** (end of Parashat Tzav, stated there explicitly). So too the sukkah: day and night.

וכל שבעת הימים עושה אדם את ביתו עראי וסוכתו קבע, שנאמר: שבעת ימים.

All seven days the house becomes **temporary** and the sukkah **permanent**, your main abode.

Honouring the sukkah

כיצד? כלים הנאים... מעלה אותן לסוכה.

Bring your **nice things** into the sukkah: nice placemats, silverware. **Don't use plastic.**

- **Allowance for real difficulty:** if you live on the fourth floor of a block of flats and would have to carry everything down four flights each time, that is *mitzta'er*, and plastic is fine.
- **No excuse the other way:** many people now have the luxury of a sukkah built **into the house**. Unless it's very cold, bring the nicest utensils.

וכלי שתיה, כגון אשישות וכוסות, בסוכה. Drinking vessels, your nice cups, in the sukkah where feasible.

אבל כלי אכילה, כגון קדרות וקערות, חוץ לסוכה. But **pots** stay outside: don't bring in the big pot of chicken soup. It isn't respectful.

What are קערות?

- **Tosafot:** another kind of **pot**, large cooking vessels.
- **The Rambam's simple reading: plates.** Then the halachah is: **once you have finished, don't leave the dirty plates in the sukkah.** Within reason: you needn't run in the moment you swallow. But you can't finish, bentch, go off to relax or visit someone and clear up hours later. **It is not respectful to the sukkah.**

והמנורה בסוכה. ואם היתה סוכה קטנה, מניחה חוץ לסוכה.

The lamp or candles belong inside, **unless the sukkah is small** and there is a real fire hazard; then leave them outside.

Halachah 6: Eating and Sleeping Outside the Sukkah

אוכלים ושותים וישנים בסוכה כל שבעה, בין ביום ובין בלילה.

ואסור לאכול סעודה חוץ לסוכה כל שבעה, אלא אם כן אכל אכילת עראי: כביצה או פחות, או יתר מעט.

One may not eat a **meal** outside the sukkah all seven days, except **temporary eating**: **a kebeitzah, or less, or a little more.**

A point about Shabbat: some poskim held that on **Shabbat**, because of the mitzvah of eating on Shabbat, even a small amount becomes a *fixed* meal. **The Rambam does not seem to hold that**, because he says **כל שבעה**, which includes Shabbat and Yom Tov: *arai* is *arai* even then. (It ties in with other issues too.)

Note the wording: "a kebeitzah, or less, or a little more." Rather loose. Hold that thought.

ואין ישנים חוץ לסוכה אפילו שינת עראי. No sleeping outside, **not even a nap**.

ומותר לשתות מים ולאכול פירות חוץ לסוכה. Water and fruit, as much as you like.

Halachah 7: The First Night, and What the Rest of the Week Requires

אכילה בליל יום טוב הראשון בסוכה חובה. אפילו אכל כזית פת, יצא ידי חובתו. מכאן ואילך רשות: רצה לאכול סעודה, יאכל בסוכה; רצה אינו אוכל כל שבעה אלא פירות או קליות חוץ לסוכה, אוכל.

The **first night** (and in chutz la'aretz, the second night too) is **obligatory**; after that it is voluntary. If you want a meal, eat it in the sukkah; if you want to live all seven days on **fruit and roasted grains** outside, you may.

What *achilat arai* really means

Notice: in both halachot the Rambam's examples of what may be eaten outside are **water, fruit, nuts/grains**.

In his commentary to the Mishnah, the Rambam **defines** *achilat arai*: eating **when you are not sitting down to a meal**. You're working, something is nagging at you, it isn't mealtime yet, so you go to the cupboard and have an apple (or, if you're unhealthy, a piece of cake): **להשקיט רעבונו**, to quieten your hunger a little. *(In those days the proper practice was two meals: breakfast, and a late-afternoon/early-evening meal. Between them you might grow hungry; that snack is arai.)*

So *arai* means something eaten temporarily until the main meal. Nowadays halachah measures quantities. But:

The Rabbi's view, לעניות דעתי: if you sit down to **meat, chicken, rice, potatoes, beans** and say *"this is achilat arai, I haven't eaten a kebeitzah of bread, 60 grams,"* is that what the Rambam meant? **He doesn't think so.** He knows the poskim will say it's permitted. But on the basis of the Rambam's commentary to the Mishnah and his text here, **it seems clear that a full meal needs a sukkah, even with no bread.** Snacking through the day (fruit in the morning, nuts in the afternoon, fruit again in the evening) is not a meal. **A full meal is not arai.**

And even with *arai*: the Rambam's limit is **a kebeitzah, or a little more**, not three pieces of cake. Today we say ~56 grams (he suspects the real figure is considerably less). **60 grams of cake belongs in the sukkah.** And the whole business of *"I'll just have mezonot"* becomes ridiculous: **you end up never sitting in the sukkah for anything**, with knock-on effects on the berachah too. **Accept the spirit here, and the Rabbi thinks the halachah as well.**

ומי שיחמיר על עצמו ולא ישתה חוץ לסוכה אפילו מים, הרי זה משובח.

One who is strict and won't drink **even water** outside the sukkah is **praiseworthy**. Note that **the Rambam hardly ever records "praiseworthy" practices**. Later poskim do it constantly, but the Rambam does so only where **the Mishnah itself** does. Here it does (the Rabbi recalled **Rabbi Tarfon or Rabbi Tzadok** having even his water brought up to the sukkah). **This is a good chumra, 100%, indisputable.**

The first-night kezayit

Authority	Minimum on the first night
Rambam, **Shulchan Aruch**	**A kezayit of bread** is sufficient
Rabbeinu Nissim (Ran)	A **kebeitzah** (two kezeitim)
Mishnah Berurah	You should eat a **kebeitzah**; many recommend it

The source: a **gezeirah shavah, חמשה עשר / חמשה עשר** ("the fifteenth", used both of Pesach and of Sukkot). Just as on the first night of Pesach **matzah** is obligatory and the rest of the

week voluntary, so on the first night of Sukkot a kezayit in the sukkah is obligatory and the rest is voluntary.

Practically, to satisfy all opinions: eat **a kebeitzah**, within about **five or six minutes** (a kezayit for sure), and eat it **plain**: plain challah, **no salads, hummus, tahini or spreads** until you have finished the kezayit (or the kebeitzah). The reasoning: the matzah must be plain, so this should be too. That is debatable; but if you want to cover every view, eat it plain first and then add whatever you like.

(Halachah 8 was skipped in the shiur.)

Halachah 9: Learning and Davening in the Sukkah

כל שבעת הימים קורא בתוך הסוכה. וכשמבין ומדקדק במה שיקרא, יקרא חוץ לסוכה, כדי שתהא דעתו מיושבת עליו.

All seven days, one reads (learns) **in the sukkah**. But when one is **studying in depth**, analysing and concentrating, one may study **outside** the sukkah, so that one's mind is settled. Small things can distract serious learning.

The Magen Avraham adds another reason: it can be a real **bother to carry all your books**. When researching something you may have **ten or twenty books open** at once, and you don't know where you'll end up or which books you'll need. Running back and forth to the shelf each time is a burden, depending on how far the sukkah is. So you may learn at home.

מתפלל — Davening may be **inside or outside** the sukkah.

Halachah 10: Rain

ירדו גשמים — הרי זה נכנס לתוך הבית. מאימתי מותר לפנות? משירדו לתוך הסוכה טפות, שאם יפלו לתוך התבשיל יפסל.

When it rains you may go in, **but only once enough rain falls that it would spoil a dish**, even a simple one. **A single drop does not count**, nor a few splatters: people feel one drop and say *"let's go in"*. It must be enough to ruin the food.

And if it stops: if you went in because of rain and it then stops, **you may finish the meal indoors**; you need not go back out mid-meal. **The same applies to sleeping.**

Summary

Women, servants and young children are exempt from sukkah (time-bound mitzvah), the tumtum and androginos obligated out of doubt, and a child who no longer needs his mother, roughly five or six but really **depending on the child**, is obligated **rabbinically for chinuch**, with Rashi placing that obligation on the **father** and Tosafot on the **child himself** (proved from the child who discharges an adult's rabbinic birkat hamazon). The ill, down to a headache, and their helpers while helping are exempt, as is the **mitzta'er**, all flowing from **תשבו כעין תדורו**; the Rambam's sleeping examples imply a **higher bar for leaving to eat**, and the distress must be **external and not self-inflicted**, so a sukkah built somewhere perpetually unliveable may not work even for eating. The **avel** is obligated because inner grief is not mitzta'er; the **chatan** and

his company are exempt through the seven days, which the Rambam's view of the chuppah as the couple's quasi-home explains. The **shaliach mitzvah** is exempt day and night (for the Rambam, the whole journey is a mitzvah; Tosafot limits it), the ordinary traveller only while travelling, and **leisure outings don't count**. The mitzvah itself is to **eat, drink and live** in the sukkah as in one's home: reading, working, relaxing. The dining-room sukkah is an Ashkenazi adaptation to a cold climate that the Rambam would reject. Bring nice things in, keep pots and dirty plates out; *arai* means a snack between meals, **not a breadless full meal**; the first night requires a **kezayit** (ideally a kebeitzah, eaten plain); in-depth learning may be done indoors; and rain means going in only when it would **spoil the food**.

Coming Up

- **Over Sukkot:** learn the **end of Perek 8**, from about **Halachah 11–12 to the end**: three short halachot on **simchah**, how really to appreciate the happiness of these eight days, *the happiest time of the year*.
- **All shiurim resume after Sukkot**: Monday HaMaspik (recap of Ch 1–9, then Ch 10, perishut), Tuesday Moreh (Ch 18–20), Thursday back to **Hilchot Shabbat**, siman 320 onward.

B'Ezrat Hashem. Chag Sameach, תזכו לשנים רבות וטובות.

Watch or listen to this shiur: youtu.be/GZPCZGBGF6E · More shiurim: rabbikada.com